RE: Re: WC/2024/227 - Cory Shepherd v Workers' Compensation Regulator

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From: Renee Matheson
Renee.Matheson@oir.qld.gov.au
To: Cory Shepherd coryshepherd1@hotmail.com
Sent: Friday 30 October at 15:59

Dear Mr Shepherd,

I refer to the above matter and your letter of 19 October 2026.

In relation to your queries;

1. As outlined in the Respondents email of 12/10/2026 with disclosure of documents from MSHH we confirm the veracity of the document. As to the facts 228 to 231 the Respondent will consult with Counsel and advise in due course
2. The Respondent will not agree to the tendering of any documents prior to hearing dates being set. In relation to Tab 24 the Respondent will consult with Counsel and advise in due course
3. The Respondents Counsel will decide during the hearing, whether or not to object to a document being tendered upon introduction of the document.
4. The elements of section 32 to be determined by the Commission at hearing is an appropriate topic to discuss at the additional conference.
5. The Respondents has been unable to consult with Counsel regarding the Respondents position on the filing of the proposed second amended statement of facts and contentions provided on 1 October 2026. This is an appropriate topic to discuss at the additional conference.
6. As outlined in the Respondents SOFAC, the Respondent contends that any management action involved in the causation of any injury to the Appellant was reasonable management action taken in a reasonable way pursuant to s32(5) WCRA.

Unfortunately, Counsels Chambers advised me of an incorrect date of Counsels return from leave and although she has been able to make quick responses in relation to her availability, I won't be able to consult her in detail regarding this matter and various correspondence until at least the 9 November 2026.

If you have any questions in relation to the above, please do not hesitate to contact me.

Kind regards,

Renee Matheson
Senior Appeals Officer
Workers' Compensation Regulatory Services
Office of Industrial Relations
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From: Cory Shepherd <coryshepherd1@hotmail.com>
Sent: Monday, 19 October 2026 4:04 PM
To: Renee Matheson <Renee.Matheson@oir.qld.gov.au>
Subject: CM: Re: WC/2024/227 - Cory Shepherd v Workers' Compensation Regulator

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Dear Ms Matheson,

Thank you for your email of 19 October 2026 and for obtaining Counsel's availability for the proposed second section 552A conference.

I confirm that I am available on all three dates proposed:

- Monday 2 November 2026 — morning;
- Thursday 5 November 2026 — morning; and
- Friday 6 November 2026 — any time.

I have no preference between these dates and am content for the conference to be listed at whichever time best accommodates the Commission and the parties.

To assist the parties in making effective use of the conference, I attach my letter and updated Schedule to the correspondence of 1 October 2026.

The letter identifies six matters on which the Respondent's position is sought, including the outstanding factual and documentary admissions, arrangements for tender, any particular relevance or admissibility objections, the matters remaining in issue under sections 32(1) and 32(5), and the proposed Second Amended Form 9A.

In light of the Regulator's further confirmations of 12 and 16 October 2026, I hope that some or all of these matters can be agreed before the conference, allowing the Commission and parties to concentrate on any genuinely outstanding issues.

I would be grateful if the Respondent could indicate its position on the matters identified in the attached letter by 4.00 pm on Friday 30 October 2026, where practicable. This request is intended to assist preparation and does not seek to delay the listing of the conference.

Please proceed to advise the Registry of my availability. I would also appreciate confirmation once a date has been fixed.

Thank you for your assistance.

Kind regards,

Cory Lea Shepherd
Appellant (self-represented)

Attachment: LETTER TO THE REGULATOR 19 OCTOBER.PDF (11 pages)

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